

- RAG Learning

2.3 Prime Minister and Executive

Politics — Edexcel (9PL0) — Component 2: UK Government, Section A

The third topic in Component 2 Section A. The examinable question is not "how powerful is the Prime Minister" but **what determines** how powerful a particular Prime Minister is — because the office confers few fixed powers and a great many contingent resources.

Executive — the Prime Minister, Cabinet, junior ministers and government departments.

Cabinet — the committee of senior ministers; formally the principal decision-making body.

Minister — a member of the government, drawn from either House.

Government department — the administrative machinery headed by a Secretary of State.

Royal prerogative — powers formally belonging to the Crown, exercised in practice by ministers, deriving from common law rather than statute.

Secondary legislation — law made by ministers under powers delegated by an Act.

Individual responsibility — a minister is accountable for their own conduct and their department.

Collective responsibility — ministers must publicly support government decisions or resign.

Presidential government — a system in which the chief executive is separately elected and not drawn from the legislature.

1. Structure, role and powers of the Executive

Component	Role
Prime Minister	Head of government; appoints and dismisses ministers; chairs Cabinet; sets policy direction; represents the UK abroad; controls the machinery of government

Cabinet	Senior ministers; formally the principal decision-making body; decisions bind through collective responsibility
Junior ministers	Departmental ministers below Cabinet rank, handling specific areas
Departments and civil service	Permanent machinery implementing policy and advising ministers; politically impartial
Special advisers	Politically appointed, not bound by impartiality; have grown substantially in number and influence

Main roles of the Executive

- **Proposing legislation** — the government controls the legislative programme, set out in the King's Speech.
- **Proposing a budget** — the Chancellor's Budget sets taxation and spending.
- **Making policy decisions within existing law** — including through secondary legislation and the prerogative.

Prerogative powers

Powers requiring no parliamentary approval: negotiating and ratifying treaties, deploying the armed forces, granting honours and pardons, appointing ministers and senior officials, recognising foreign states. Their constitutional significance is that they give the executive authority Parliament never conferred.

Constraint	Effect
The war powers convention	After the 2003 Iraq vote, an expectation that the Commons is consulted before military action. The 2013 Syria defeat showed it has real force; the 2018 Syria strikes without a prior vote showed it is not absolute
Constitutional Reform and Governance Act 2010	Treaty ratification placed on a statutory footing, requiring treaties to be laid before Parliament

Miller (2017)	Prerogative cannot be used to remove rights conferred by statute
Miller/Cherry (2019)	A prorogation frustrating Parliament's constitutional functions is unlawful and void — prerogative is reviewable
FTPA 2011 and its repeal	Removed then restored the prerogative power over early elections — evidence that constraints can be reversed

2. Ministerial responsibility

Individual responsibility

A minister is accountable to Parliament for their own conduct and for their department's work. In practice resignations cluster around **personal** conduct — breaches of the Ministerial Code, misleading Parliament, private misconduct — far more than departmental failure.

Why departmental failure rarely produces resignation:

- The **policy–operations distinction**. Ministers accept responsibility for policy and attribute operational failure to officials or agencies. Since departments are large and much delivery is at arm's length, this distinction can be drawn in almost any case.
- **Accountability separated from culpability**. Ministers distinguish between explaining what happened and putting it right, and being personally to blame. Only the latter is treated as requiring resignation.
- **Prime ministerial interest**. A resignation is an admission of government failure, so a PM protects a minister unless the political cost of keeping them exceeds the cost of losing them. Whether a minister goes depends largely on media pressure and party mood.

The constitutional consequence: if nobody resigns for departmental failure, the convention no longer supplies accountability for the exercise of executive power, and select committees and the courts end up doing work the convention was supposed to do.

Collective responsibility

Ministers must publicly support decisions reached by the government or resign to dissent, and Cabinet discussions remain confidential. It is enforced far more reliably than individual responsibility, because it serves the Prime Minister's interest directly — it presents the government as united and denies critics a ministerial voice.

Formal suspensions: the 1975 EEC referendum and the 2016 EU referendum, when ministers were released to campaign on either side. These are the standard examples, and both concerned referendums on questions cutting across party lines.

3. The power of the Prime Minister and the Cabinet

Sources of prime ministerial power

Source	Detail
Patronage	Appoints and dismisses ministers, and controls promotion — the strongest lever over backbenchers
Cabinet management	Sets the agenda, chairs meetings, creates and staffs Cabinet committees, decides what reaches full Cabinet
Party leadership	Authority derives from leading the majority party; conference, members and MPs all matter
The centre	The Prime Minister's Office, Cabinet Office and special advisers give an independent policy capacity
Public standing	Media profile and an electoral mandate convert into leverage over colleagues
Prerogative powers	Exercised in the PM's name — appointments, honours, deployment

What determines how much a PM can actually do

- **Size and unity of the majority.** The single most important variable. A large united majority allows a PM to legislate at will; a small or absent one transfers power to backbenchers, as Major found after 1992 and May after 2017.
- **Standing in the party and the country.** Authority rests on perceived electoral value. Poor polling, lost by-elections or a damaged competence reputation removes the reason for loyalty.
- **Circumstances.** Crisis concentrates authority at the centre, since only the executive can act quickly — the pandemic is the clearest recent example. A dominant issue that splits the party destroys freedom of action, as Europe did for Major and May.
- **Personal skill.** Neustadt's argument that executive power is the power to persuade applies: the ability to appoint strategically, manage rivals and communicate matters.
- **Stage of the term.** Power is generally greatest early, when the mandate is fresh.

Models of executive power

Model	Claim	Problem
Cabinet government	Decisions are taken collectively; the PM is first among equals	Much decision-making occurs in committees or bilaterally; full Cabinet often ratifies rather than deliberates
Prime ministerial government	Power has concentrated in the PM and the centre	Cannot explain why four of the last seven PMs were removed by their own parties
Presidentialisation	PMs govern through personal mandate, media profile and a strengthened centre; spatial leadership distances them from party	A PM sits in and depends on the legislature; power is contingent on party support in a way a president's is not
Core executive	Power is distributed across a network — PM, Cabinet, Treasury, departments, officials, advisers — who depend on one another for resources	Can understate how much the centre sets the agenda when a PM is strong

Exam Tip: For "To what extent does the UK have prime ministerial government?", the core executive model gives you the strongest judgement: the apparent oscillation between Cabinet and prime ministerial government is really variation in how much of the network a particular PM commands. That explains what the other two models cannot — why the same office produced Blair in 2001 and May in 2018 with identical formal powers and utterly different capacity.

Constraints on the Prime Minister

- **The parliamentary party.** A PM holds office only while commanding the confidence of their own MPs, who can remove them without a general election — Thatcher 1990, May 2019, Johnson and Truss 2022.
- **Senior colleagues.** Coordinated resignations can end a premiership; a Chancellor with an independent base constrains significantly.
- **Events and capacity.** Economic conditions, crises and the difficulty of making large organisations deliver limit what any PM achieves.
- **The courts and Parliament.** *Miller* and *Miller/Cherry*; Commons defeats.

Quick recall

- Executive = PM + Cabinet + junior ministers + departments; special advisers are political appointees
- Prerogative: treaties, deployment, honours, pardons, appointments — constrained by convention and by *Miller/Miller-Cherry*, not comprehensively by statute
- Individual responsibility weakened by the policy–operations distinction; resignations cluster on personal conduct
- Collective responsibility suspended formally in 1975 and 2016
- Four models: Cabinet, prime ministerial, presidentialisation, core executive
- Four of the last seven PMs removed by their own party — the decisive fact against presidentialisation

- The PM's powers are powers of appointment and agenda-setting, not powers to produce outcomes